AGREEMENT NO. REF

Master Services *Agreement.*

Web design, development and online visibility services. This agreement sets out how we work together, what is included, and the terms that protect both of us.

PROVIDER **Lee Thompson**, an individual doing business as Ares thompsontechnologiesleet@gmail.com	CLIENT Legal name Business entity / type
CLIENT ADDRESS Street, City, State, ZIP	AUTHORIZED CLIENT CONTACT Name, title Email
PROJECT Project title	EFFECTIVE DATE Date of the last signature below
GOVERNING LAW State of Iowa · Courts of Cerro Gordo County, Iowa	

This agreement consists of the terms that follow, Schedule A (Statement of Work) and any change orders signed by both parties. If they conflict, the Statement of Work controls for project-specific commercial details; these terms control for everything else.

01 SERVICES

Provider will perform the services described in Schedule A (the “Services”), which may include website design and development, redesign, search engine optimization and related digital marketing. Anything not listed in Schedule A is outside the scope of this agreement and requires a written change order.

02 CLIENT RESPONSIBILITIES

Client will name one decision-maker, provide content, brand assets, account access and feedback by the dates in Schedule A, and confirm it has the right to use everything it supplies. Account access will be shared through individual user invitations or a password manager, never by email. Client remains responsible for the accuracy and legality of its own business claims, products and policies.

03 TIMELINE

Dates in Schedule A are good-faith estimates that depend on timely payment, content and approvals. If Client is late providing anything Provider needs, dependent milestones move by at least the same amount. If a project is paused at Client’s request or by Client inactivity for more than 30 days, Provider may reschedule the remaining work according to availability.

04 FEES AND PAYMENT

Client will pay the fees in Schedule A. Unless Schedule A says otherwise, 50% of the project fee is due before work begins and the remaining 50% is due on completion, before launch or delivery of final files. Invoices are due within 14 days. Provider may pause work on any invoice more than 14 days overdue after written notice. Recurring services are billed in advance each period. Third-party costs such as hosting, domains, plugins, fonts and stock media are paid by Client.

05 REVISIONS AND CHANGES

Two rounds of consolidated revisions are included at each review stage unless Schedule A states otherwise. A round is one combined list of changes from Client’s decision-maker. Additional rounds, new pages or features, or a change of direction after approval are billed at the hourly rate in Schedule A or by written quote, and will not start until Client approves the cost in writing.

06 REVIEW AND ACCEPTANCE

Client will review each deliverable within 5 business days and either approve it or provide a consolidated list of changes. Final launch requires Client’s written approval and payment of all amounts due. Provider will correct any material defect in the delivered work that Client reports within 30 days after launch at no charge.

07

OWNERSHIP

When Client has paid in full, Provider assigns to Client all rights in the final custom deliverables listed in Schedule A. Until then, Client may review previews only and may not publish or reuse them. Provider keeps ownership of its pre-existing code, tools, templates and know-how, and grants Client a permanent, non-exclusive license to use any of them that are built into the paid deliverables. Third-party software, fonts and media remain subject to their own licenses. Client keeps ownership of everything it supplies.

08

PORTFOLIO

Provider may display the completed, publicly launched work and Client's name in its portfolio unless Client opts out in Schedule A. Provider will never disclose confidential information in doing so.

09

CONFIDENTIALITY

Each party will keep the other's non-public business, technical and customer information confidential, use it only for this project, and return or delete it on request when the project ends. This does not cover information that is already public, independently developed or lawfully received from someone else, or that must be disclosed by law.

10

HOSTING AND THIRD PARTIES

Hosting, domains, plugins and other third-party services are provided by their vendors under their own terms. Provider is not responsible for their outages, price changes or policy changes. Maintenance, backups, security updates and support after launch are included only as stated in Schedule A.

11

MARKETING RESULTS

Provider will perform search and marketing work with professional care, but outcomes depend on search engines, competitors and market conditions outside Provider's control. Provider does not guarantee any ranking, traffic, leads, sales or return on investment.

12

WARRANTIES AND LIABILITY

Each party confirms it has the authority to enter this agreement. Provider will perform the Services in a professional and workmanlike manner. Except as stated in this agreement, the Services are provided without other warranties. Neither party is liable for indirect, incidental or consequential damages or lost profits. Each party's total liability under this agreement is limited to the fees paid or payable under it, except for Client's payment obligations and either party's fraud or willful misconduct.

13 INDEMNITY

Client will defend and indemnify Provider against third-party claims arising from content or materials Client supplied. Provider will defend and indemnify Client against third-party claims that original work created by Provider infringes someone else's intellectual property.

14 TERMINATION

Either party may end this agreement with 14 days' written notice, or immediately if the other party materially breaches it and does not cure the breach within 10 days of written notice. On termination, Client pays for work performed and approved expenses incurred up to the termination date; any deposit above that amount is refunded within 30 days. Provider delivers all paid work. Sections 4, 7, 9, 12, 13 and 15 survive termination.

15 GOVERNING LAW AND DISPUTES

This agreement is governed by the laws of the State of Iowa, without regard to its conflict-of-law rules. The parties will first try to resolve any dispute through good-faith discussion for 30 days after written notice. If unresolved, either party may bring the dispute in the state or federal courts located in Cerro Gordo County, Iowa, and each party consents to that jurisdiction. Either party may use small claims court where eligible.

16 INDEPENDENT CONTRACTOR

Provider is an independent contractor, not an employee, partner or agent of Client, and is responsible for its own taxes, tools and working methods. Provider may use subcontractors and remains responsible for their work.

17 GENERAL

This agreement, with Schedule A and signed change orders, is the entire agreement between the parties and replaces any prior discussions. Changes must be in writing and signed by both parties. Notices may be sent by email to the addresses above. If any provision is unenforceable, the rest remains in effect. Neither party may assign this agreement without the other's consent. Neither party is liable for delays caused by events beyond its reasonable control.

18 ELECTRONIC SIGNATURES

The parties agree this agreement may be signed electronically and in counterparts, as permitted by the Iowa Uniform Electronic Transactions Act (Iowa Code ch. 554D) and the federal E-SIGN Act. An electronic signature has the same effect as an original. The agreement takes effect when both parties have signed.

SCHEDULE A

Statement of *Work.*

Completed for each client and project.

PROJECT OVERVIEW & GOALS

INCLUDED SERVICES & DELIVERABLES

EXCLUSIONS

PAGES / KEY FEATURES

PLATFORM & HOSTING

CLIENT INPUTS & DUE DATES

POST-LAUNCH SUPPORT

REVISION ROUNDS

Two per review stage, or _____

PORTFOLIO USE

☐ Permitted ☐ Not permitted

MILESTONES

MILESTONE	TARGET DATE
Kickoff & discovery	_____
Design direction review	_____
Build complete · final review	_____
Launch	_____

FEES

ITEM	WHEN DUE	AMOUNT (USD)
Deposit (50% of project fee)	Before work begins	_____
Final payment (50% of project fee)	On completion, before launch	_____
Recurring services	Monthly, in advance	_____ / mo
Additional work	Invoiced as approved	_____ / hr
Total project fee		_____

Applicable sales tax is added where required. Third-party costs are billed at cost or paid directly by Client.

Agreed and *signed.*

By signing, each party agrees to this Master Services Agreement and Schedule A. Once signed, your next step is the welcome guide: **ares-web.com/welcome →**

CLIENT

_____

SIGNATURE

_____

PRINTED NAME & TITLE

_____

DATE

PROVIDER · ARES

_____

SIGNATURE

Lee Thompson

PRINTED NAME

_____

DATE